

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X

JULIO CESAR ESPADERO,

Plaintiffs,

-against-

THE CITY OF NEW YORK; POLICE OFFICER
ESPADA of the 120th Precinct; POLICE OFFICER
SIRINTINI; POLICE OFFICER MATTEO;
POLICE OFFICERS JOHN DOES 1-3;
SUPERVISORY OFFICERS JOHN DOES 4-5,
individually and in their official capacities,
(the name "John Doe" being fictitious, as the true
name and number are presently unknown),

Defendants.

-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 8, 2020

Yours etc.

Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff

JULIO CESAR ESPADERO

233 Broadway, Suite 2348

New York, NY 10279

212-226-2275

Index No.:

SUMMONS

Plaintiff designates Richmond
County as the place of trial.

The basis of venue is:

The county in which the
action arose per CPLR 504(3)

The cause of action arose in
Richmond County and is
against the City of New York

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

POLICE OFFICER ESPADA, 120th Precinct
78 Richmond Terrace
Staten Island, NY 10301

POLICE OFFICER SIRINTINI, 120th Precinct
78 Richmond Terrace
Staten Island, NY 10301

POLICE OFFICER MATTEO, 120th Precinct
78 Richmond Terrace
Staten Island, NY 10301

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X Index No.:

JULIO CESAR ESPADERO,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK; POLICE OFFICER
ESPADA of the 120th Precinct; POLICE OFFICER
SIRINTINI; POLICE OFFICER MATTEO;
POLICE OFFICERS JOHN DOES 1-3;
SUPERVISORY OFFICERS JOHN DOES 4-5,
individually and in their official capacities,
(the name "John Doe" being fictitious, as the true
name and number are presently unknown),

Defendants.

-----X

Plaintiff, Julio Cesar Espadero, by and through their attorneys, THE LAW OFFICE OF
CHRISTOPHER H. FITZGERALD, as and for his Complaint against the Defendants herein,
states and alleges as follows:

PRELIMINARY STATEMENT

- 1) This is a civil rights action seeking monetary relief, a declaratory judgment, compensatory and punitive damages, disbursements, costs and fees, for violations of the Plaintiffs's rights under the First, Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States, brought pursuant to 42 U.S.C. § 1983.
- 2) The rights of Plaintiff, JULIO CESAR ESPADERO, were violated when officers of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") unconstitutionally and without any legal basis seized, detained, arrested and used gratuitous, unlawful force

against the Plaintiff. By reason of defendants' actions, including their unreasonable and unlawful conduct, unreasonable search, protracted seizure, arrest without probable cause, and abuse of process, Plaintiff was deprived of his constitutional rights.

- 3) Plaintiffs also seek an award of compensatory and punitive damages and attorneys' fees.

JURY DEMAND

- 4) Plaintiff respectfully demands a trial by jury in this action on each claim of damage.

PARTIES

- 5) Plaintiff, JULIO CESAR ESPADERO, is and was at all times relevant to the action, a resident of the County of Richmond in the State of New York.
- 6) Defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY"), is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
- 7) The named police officer defendants, ESPADA, SIRINTINI, and MATEO, were at all times herein mentioned police officers, employed by and acting under the direction of the CITY and NYPD. Their shield numbers are not known to the Plaintiff at this time.

- 8) The unnamed defendant POLICE OFFICERS and SUPERVISORY OFFICERS, presently listed herein as JOHN DOES 1-5, their true names being unknown to the Plaintiffs at this time, were at all times herein mentioned police officers, employed by and acting under the direction of the CITY and NYPD. The named and unnamed individual officer defendants may be referred to collectively herein as “the police officer defendants.”
- 9) At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
- 10) Defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice and with gross disregard for Plaintiff’s rights.
- 11) At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

- 12) The events described herein occurred principally in the County of Richmond. The Plaintiff was arrested in the neighborhood known as West Brighton and transported to the 120th Precinct in the neighborhood known as St. George.
- 13) On March 6, 2016, Plaintiff was driving his grandson, Nicholas, to Richmond University Medical Center because Nicholas was running a fever. Plaintiff's wife and daughter were also in the vehicle.
- 14) When Plaintiff arrived at the intersection of Bard Street and Forest Avenue, he saw that Forest Avenue was closed due to the St. Patrick's Day parade. Plaintiff was traveling Northbound.
- 15) Since Forest Avenue was blocked, Plaintiff attempted to turn into the Starbucks parking lot on the Southwest corner of Bard Street and Forest Avenue.
- 16) Police officer defendants SIRINTINI and ESPADA approached on foot and stopped Plaintiff in his vehicle. The police officer defendants directed Plaintiff to pull over into the parking lot. At least one additional officer, MATTEO, arrived at the scene shortly.
- 17) The police officer defendants asked Plaintiff for his license and registration and Plaintiff complied.
- 18) Defendant ESPADA directed Plaintiff to step out of the car and Plaintiff complied.

- 19) Once Plaintiff exited the vehicle, ESPADA directed Plaintiff to turn around.
- 20) When Plaintiff complied and turned around, ESPADA placed handcuffs on him.
- 21) While Plaintiff was in custody, he asked them to do a breathalyzer test and asked them not to arrest him.
- 22) The police officer defendants refused to conduct any breathalyzer, nor any sobriety test prior to transporting Plaintiff to the police station.
- 23) The police officer defendants drove Plaintiff to the 120th Precinct.
- 24) At the precinct, the police officer defendants set up a camera to record the Plaintiff during an interview and sobriety test.
- 25) Another police officer defendant, JOHN DOE 1 told Plaintiff “you know why you’re here.”
- 26) After testing and interviewing Plaintiff, defendant police officer JOHN DOE 1 said to other police officer defendants, “there’s nothing wrong with this guy, who arrested him? They’re trying to make me make the decision.”
- 27) After some time in custody, ESPADA told Plaintiff, “I have to give you a ticket.” Plaintiff responded asking, “for what?” ESPADA responded, “it won’t give you any points, but you have to pay \$40.”

- 28) ESPADA issued Plaintiff a Desk Appearance Ticket (“DAT”), number ABA5908781. The ticket alleges that at 6:30pm on March 6, 2016, Plaintiff violated VAT § 401-2, “Front Plate Not Displayed.”
- 29) The ticket issued by ESPADA was not accurate because the license plate on Plaintiff’s vehicle was properly attached and clearly displayed.
- 30) ESPADA willfully fabricated this charge, and initiated the prosecution of PLAINTIFF for this fabrication.
- 31) The ticket was dismissed at a TVB hearing in Richmond County on May 1, 2017.
- 32) At all times during the illegal arrest and detention of the Plaintiff, Defendant Police Officers were aware that there was no evidence that Plaintiff had committed any crime.
- 33) Defendants arrested Plaintiff in front of his wife, daughter, and grandson, with knowledge that there was no probable cause to do so.
- 34) Defendants confined Plaintiff wrongfully for several hours with no authority to do so.
- 35) Defendants did not bring criminal charges against Plaintiff. Instead, Defendant ESPADA knowingly issued a summons or desk appearance ticket .
- 36) All of the defendant police officers present knew that ESPADA issued the ticket spuriously in order to attempt to cover up the wrongful arrest of the Plaintiff.

- 37) As a result of the forgoing, ESPADA suffered loss of liberty, pain and discomfort, and emotional and psychological distress. ESPADA was humiliated in front of his family because of an arbitrary abuse of power by the police officer defendants, who did not have any reason whatsoever to believe that ESPADA had committed any wrongdoing. ESPADA and his family also suffered additional agony because the brazen violation of his civil rights interfered with their efforts to obtain medical care for his son Nicholas.

**FIRST CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER THE UNITED STATES CONSTITUTION
AND 42 U.S.C. §1983**

- 38) Plaintiff incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
- 39) Defendants, under color of state law, subjected the Plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and causing him physical distress and discomfort, pain and suffering, psychological and emotional injury, costs and expenses, and other damages and injuries.
- 40) Defendants conducted an unreasonable seizure of the Plaintiff's person.
- 41) Defendants initiated and continued a criminal action against the Plaintiff without probable cause.
- 42) Defendants commenced this criminal action out of malice.
- 43) The criminal action against Plaintiff terminated in Plaintiff's favor.

- 44) The arrest, confinement, and restraint of Plaintiff's liberty was not otherwise privileged.
- 45) Defendants disregarded exculpatory evidence in order to further their malicious prosecution of the Plaintiff.
- 46) As a direct, sole and proximate result of the defendants' actions, Plaintiff was caused to suffer psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and standing in his community.
- 47) Defendants arrested Plaintiff without probable cause to believe that he had committed any wrongdoing.
- 48) Defendants wrongfully avoided conducting routine sobriety tests in order to prevent exculpatory evidence from coming to light.
- 49) Defendant ESPADA swore to false information against Plaintiff in a Desk Appearance Ticket, which was known to and supported by the other police officer defendants.
- 50) Defendants subjected Plaintiff to abuse of process.
- 51) Defendants deprived Plaintiff of liberty without due process of law.
- 52) Defendants violated the Plaintiff's right to equal protection, privileges and immunities under the laws.

- 53) Defendants discriminated against Plaintiff as a Hispanic who speaks English as a second language.

**SECOND CAUSE OF ACTION
FAILURE TO INTERVENE UNDER
THE FOURTH AMENDMENT AND 42 U.S.C. § 1983**

- 54) Plaintiffs realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.
- 55) Members of the New York Police Department have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the Police Department or other law enforcement agency falsely arresting a civilian.
- 56) Defendant police officers, those individually named and those listed herein as JOHN DOE and including supervisory officers, were all aware of and complicit in the arrest of Plaintiff without probable cause.
- 57) It was clear that the information known to the defendant police officers, at the time of their arrest of the Plaintiff, was insufficient to constitute probable cause for an arrest, yet all of the officers involved failed to take any action or make any effort to intervene, halt, or protect Plaintiff from being arrested without probable cause.
- 58) Defendant police officer's, violation of Plaintiff's constitutional rights by failing to intervene in the clearly unconstitutional arrest resulted in the injuries and damages set forth above.

**THIRD CAUSE OF ACTION
MUNICIPAL LIABILITY AGAINST THE CITY OF NEW YORK
UNDER 42 U.S.C. § 1983 and *MONELL***

- 59) Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.
- 60) All of the acts and omissions by the unnamed individual police officer defendants described above were carried out pursuant to overlapping policies and practices of the CITY OF NEW YORK, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant CITY and its agency, the POLICE DEPARTMENT.
- 61) Defendant CITY and the POLICE DEPARTMENT, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.
- 62) The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the CITY and the POLICE DEPARTMENT, all under the supervision of ranking officers of the POLICE DEPARTMENT.
- 63) The aforementioned customs, practices, procedures and rules of the CITY and the POLICE DEPARTMENT include, but are not limited to, the following unconstitutional practices:

- a. Arresting persons known to be innocent in order to meet “productivity goals” (*i.e.*, arrest quotas);
- b. Interrogating suspects based on their racial background and appearance rather than on any legally valid basis for suspicion;
- c. Allowing and/or encouraging officers to regard a foreign language accent as a basis of suspicion of criminal wrongdoing;
- d. Causing summonses to be issued in the absence of any evidence of criminal wrongdoing, specifically to shift and detract blame after an illegal arrest and/or interrogation;
- e. Creating a policy and system of awards and punishments for officers based on quotas for the number of summonses they issue;
- f. Disproportionately issuing summonses under such quota system to black and Hispanic individuals in violation of their rights under the Equal Protection Clause;
- g. Showing deliberate indifference to whether arrests or summonses issued pursuant to established quotas are based on probable cause or any legal basis;
- h. Showing deliberate indifference to the supervision of subordinate officers in enforcing the established quotas system and determining whether summonses were legitimately issued;
- i. Discouraging police officers from reporting the corrupt or unlawful acts of other police officers;
- j. Retaliating against officers who report police misconduct;
- k. Failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented by a supervisor or other agent or employee of the POLICE DEPARTMENT.

64) Plaintiff alleges that the CITY has promulgated such policies and/or become aware that such practices have been widespread within the POLICE DEPARTMENT for years prior to the Plaintiff’s unlawful arrest.

65) In the class action lawsuit *Stinson v. City of New York*, 10-cv-04228 (SDNY), the Plaintiff class alleged in explicit detail that the POLICE DEPARTMENT employed an

illegal quota system for summonses, arrests, and so called “quality-of-life violations.” In order to meet the illegal quotas, NYPD precinct commanders ordered officers to issue summonses in cases in which there was no probable cause of a crime being committed. The Plaintiffs introduced tape recordings of two precinct commanders issuing orders for officers to issue summonses and “articulate” violations of the law after the fact. These policies disproportionately affected minority communities.

66) At the time of the unlawful arrest of the Plaintiff, *Stinson v. New York* was still being litigated. The lawsuit was settled in 2017 and the final judgment was issued on June 19, 2017. As part of the settlement, the POLICE DEPARTMENT agreed to make changes to its policies practices, and procedures related to criminal summonses. However, any changes to the illegal policies and practices of the POLICE DEPARTMENT, including the use of a quota system and the “articulating” of summonses to cover up false arrests, was not yet in effect at the time of Plaintiff’s unlawful arrest.

67) Defendant CITY knew or should have known that the acts alleged herein would deprive the Plaintiff and similarly situated individuals of their rights, in violation of the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

68) Defendant CITY is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the officially recognized rules and regulations of the CITY and POLICE

DEPARTMENT, and to require compliance with the Constitution and laws of the United States.

69) Despite knowledge of such unlawful policies, practices and/or customs, these supervisory and policy-making officers and officials of the CITY and the POLICE DEPARTMENT did not take steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, and do not otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

70) The aforementioned CITY policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned CITY policies, practices and/or customs, the individual police officer defendants felt empowered to racially profile the Plaintiff, pull Plaintiff's vehicle over without having witnessed any evidence of inebriation or wrongdoing, refuse to conduct routine tests, misconstrue Plaintiff's Hispanic accent as evidence of inebriation, arrest Plaintiff without probable cause, provide false information on a DMV ticket, withhold exculpatory evidence, and conduct improper interrogations of the Plaintiff without cause in an attempt to find some evidence that would justify their illegal conduct.

71) Plaintiff's injuries were a direct and proximate result of the Defendant CITY and the POLICE DEPARTMENT'S wrongful *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the Defendant CITY and the POLICE DEPARTMENT to properly supervise, train and discipline their police officers.

72) Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of the Plaintiff's constitutional rights.

WHEREFORE, Plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other relief as the Court may deem just and proper.

Dated: New York, New York
July 8, 2020

Respectfully submitted by,

_____/s/_____
Christohper H. Fitzgerald

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **JULIO CAESAR ESPADERO**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
July 8, 2020

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff